

24SMCV05044 24SMCV05044

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Case Number: 24SMCV05044 Hearing Date: July 1, 2026 Dept: N

TENTATIVE RULING

Plaintiff Joseph Ariel Hazani's Motion to Amend Judgment or Motion for Leave to File Fourth Amended Complaint is DENIED.

Clerk to give notice.

REASONING

Plaintiff Joseph Ariel Hazani ("Plaintiff") moves the Court for leave to file a Fourth Amended Complaint in this action. Plaintiff's motion is entitled as both a Motion to Amend Judgment and a Motion for Leave to File Fourth Amended Complaint. Plaintiff argues that the proposed amended pleading "is a clinical restructuring that strips away all narrative grievances and focuses exclusively on a triable commercial property dispute" (Mot., p. 3), he contends that he had a learning curve in representing himself that can now be resolved through use of artificial intelligence, and the dismissal of the action was merely because of formatting errors with his earlier pleading.

In short, Plaintiff is asking for 4th opportunity to properly plead his action after it was dismissed. It follows that this is more properly characterized as a motion for reconsideration. Code of Civil Procedure section 1008, subdivision (a), allows a Court to reconsider a prior order as follows:

When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

Plaintiff provides no new facts, circumstances, or law with this motion, and it is well established that "[the burden under [Code of Civil Procedure] section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial." (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212-213.) Second, it is well established that "[w]hen a litigant is appearing in propria persona, he is entitled to the same, but no greater, consideration than other litigants and attorneys." (Nelson v. Gaunt (1981) 125 Cal.App.3d 623, 638.) In other words, a misunderstanding of legal requirements is not itself a basis to allow a party to amend a pleading. Third, Plaintiff represents to the Court that he intends to litigate this action through use of artificial intelligence tools, i.e., Plaintiff will not do the work himself and instead will

rely on tools that are prone to hallucination and, quite simply, not equipped to litigate a case. Fourth, and perhaps most importantly, the proposed pleading is, again, incomprehensible, perhaps because of the reliance on artificial intelligence to "write" a pleading, i.e., Plaintiff mentions a commercial and legal agency and pause of this business due to certain conduct, but he does not describe the agency, making any damages unclear. For these reasons, Plaintiff Joseph Ariel Hazani's Motion to Amend Judgment or Motion for Leave to File Fourth Amended Complaint is DENIED.